ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	33rd Commission Meeting
DATE:	19 March 2019
TIME:	2:00 pm
VENUE:	Chairperson's Chamber

#	AGENDA	DECISIONS
1	Present draft concept paper on incentivizing BIIB- PD, DoPE *The Prevention Division, DoPE presented the draft concept paper developed in consultation with the Task Force. The proposal to incentivize the initiative was developed based on the feedback of the private and public companies to encourage all to participate and take ownership of the initiative.* *The six most feasible incentives prioritized from the total of 11 initially recommended by the Task Force were:* *1) Added weight in tender evaluation;* *2) Integrity mark for marketing;* *3) Public recognition;* *4) Reference to foreign investors;* *5) Capacity building; and* 6) *Tax incentives.*	The Commission approved the proposed incentives in general with only reservation on "public recognition". Specific comments and directives of the Commission on the incentives were: i) *Added weight in tender evaluation*: As the revision of the Procurement Rules and Regulations has been finalized, incorporating an added advantage in the Special Conditions of Contract for tender evaluation was recommended to be explored with the MoF, as an alternative. ii) *Integrity mark for marketing and Reference to foreign investors* was proposed to be combined. Pointed that the recognition should not be easy to get. iii) *Public recognition:* Expressed reservations since it may also go wrong if the company is found to be unethical after being recognized. iv) *Capacity building:* This is to facilitate exposure to international/regional best practices and also provide opportunity to share, while the expenses for such travel should be borne by the companies. Commission directed to also include sharing and learning at the national forums. v) *Tax incentive:* Tax incentives for the company implementing the initiative was discussed to be difficult as it would require the intervention of the Parliament. Instead the Commission suggested to propose MoF to accept the expenses related to integrity promotion as "allowable deductions". DoPE to work with the relevant agencies to adopt the incentives as per the comments and directives of the Commission. The incentives to be rolled out in phases depending on its feasibility and importance.

2	Present the draft form related to sharing requested AD information- PD, DoPE *The Form is expected to facilitate sharing of AD information requested by agencies (only NHDCL and NPPF at present) as against the current practice of exchanging letters.*	The Commission endorsed the proposed form to be used by the requesting agency as well as the ACC to share AD information. The form will ensure security of the individual's AD as per the AD Rules 2017. The Commission directed DoPE to consult Legal Division and add a cautionary note to use the information for intended purpose.
3	Others: - Review of the draft Guidelines.	To get wider perspective and enrichment, the Commission decided to reconstitute the Committee involved in reviewing and finalizing the draft manuals and guidelines in 2016, to review and finalize the draft Guideline on Information Enrichment of DoPS and any other drafts presented henceforth. PPS to apprise about the Committee to the Commission.

Commissioner **Commissioner** **Chairperson**